

		\$400,000.00 from the Defendant which arose out of a sale of real property. The funds being sued upon are necessary for her continuing care and support. Code Civ. Proc. § 36 (e) provides: Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference. Given that Anneliese Narath is 84 years of age, and is the sole beneficiary of the Anneliese Narath Revocable Trust, utd 11/24/2009, of which Plaintiff Karin Chavez is Trustee, the Court exercises its discretion and finds that the interests of justice will be served by granting preference. The Court sets a Trial Setting Conference on April 21, 2025 at 10:00 a.m. in Department C27 for the setting of a trial date. Counsel for Plaintiff and Defendant are ordered to appear either in person or remotely. The Clerk is ordered to give notice.
103	2025-01453005 H. vs. Ovation Fertility	Motion to Appear Pro Hac Vice The unopposed verified application by Daniel Campbell (“Counsel”) of the law offices of McDermott Will & Emery LLP for an Order permitting him to appear as counsel pro hac vice in this action on behalf of Defendant US Fertility, LLC is granted. Counsel substantially complied with Rule 9.40. Counsel shall give notice.
104	2021-01217921 Jeyaprakash vs. New Skin and Body Aesthetics, Inc.	Motion for Summary Judgment and/or Adjudication The Court grants Defendant Suwan Cheong’s Motion for Summary Judgment/Adjudication as to the first cause of action in Plaintiff Tharini Jeyaprakash’s Second Amended Complaint for negligence. <u>Evidentiary Objections</u> The Court overrules Defendant’s objection nos. 1 through 16. <u>Request for Judicial Notice</u> Plaintiff filed an untimely request for judicial notice, to which Defendant filed an Opposition. The request for judicial notice is denied as untimely. (CCP §437c(b)(2).) Further, even if it were considered, it does not change the ruling. (See <i>Dover v. Sadowinski</i> (1983) 147 Cal.Ap.3d 113, 117-118, plaintiff knew that Defendant was one of several doctors who treated his deceased wife, but did not move to join him as a “Doe” until 19 months after the original complaint (for wrongful death) was filed; Plaintiff admitted “We knew he was involved, but we had no idea, Your Honor, how deeply as a negligent individual, he was involved.” Leave to amend was properly denied because “actual knowledge” does not require that plaintiff have known each and every detail of the defendant's involvement.) <u>Legal Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima

facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Scheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Where a complaint is amended after the statute of limitations has run to identify a fictitiously-named defendant, and to assert a cause of action against that defendant not included in the original complaint, the amended complaint will be given relation back effect, so as to avoid the statute of limitations, provided:

- the original complaint stated a valid cause of action against the now-identified “Doe” defendant; and
 - plaintiff was “genuinely ignorant” of the defendant's identity or the facts rendering defendant liable when the original complaint was filed; and
 - the amended complaint, identifying the defendant, is based on the “same general set of facts” as the original and refers to the “same accident and same injuries.”
- (*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600-601; *Eghtesad v. State Farm Gen. Ins. Co.* (2020) 51 Cal.App.5th 406, 415.)

To defeat the amendment, the burden is on defendant to prove plaintiff's earlier awareness of defendant's identity and facts creating its liability. (*See Fara Estates Homeowners Ass'n v. Fara Estates, Ltd.* (9th Cir. 1998) 134 F3d 377, 377 (applying Calif. law); *Breceda v. Gamsby* (1968) 267 Cal.App.2d 167, 179.)

Whether plaintiff was genuinely “ignorant” or had “actual knowledge” of the “Doe” defendant's identity or liability when the complaint was filed is determined by a good faith test. (*Woo v. Sup.Ct. (Zarabi)* (1999) 75 Cal.App.4th 169, 177—genuine ignorance required; *Munoz v. Purdy* (1979) 91 CA3d 942, 947.) Knowledge of plaintiff's attorney can be imputed to the plaintiff for statute of limitations and Doe purposes. (*See Miller v. Thomas* (1981) 121 Cal.App.3d 440, 445.)

		Here, Plaintiff filed her Complaint for negligence on 8/25/21. (ROA 2). She sued Defendant New Skin and Body Aesthetics Inc. Plaintiff alleged in relevant part as follows: “the Defendants, and each of them, negligently and tortuously failed to possess or exercise that degree of knowledge or skill that would ordinarily be possessed and exercised by physicians and surgeons, hospitals, nurses, surgical technicians, attendants, medical clinics, and the like, engaged in said professions in the same locality as Defendants, and each of them, in that the Defendants, and each of them negligently and unlawfully failed to properly and correctly diagnose, render care, and provide treatment on, to perform proper surgery on, and prescribe and administer medicine and drugs for the condition of Plaintiff. Specifically, on Wednesday, October 14, 2020, Plaintiff underwent laser hair removal in her Brazilian area at the hands of a nurse, Suwan Cheong, B.R.N., who was an employee of Defendant NEW SKIN AND BODY AESTHETICS, INC. During the course of the procedure, Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, nurse <u>Cheong had the wrong settings on the laser removal tool and lasered the skin of the suprapubic and perineal area too long so as to cause Plaintiff fourth-degree, third-degree, second-degree and first-degree burns to her genitourinary system, i.e. her genital area.</u> Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, <u>there was an absence of physician supervision before and during the procedure. And, that nurse Cheong was inadequately trained to perform said procedure.</u> Plaintiff is informed and believes, and thereon alleges, that at all times herein alleged, Plaintiff has permanent scarring to her genitalia and its surrounding area. (Compl., ¶9, emphasis added.) So, as of the filing of the Complaint, Plaintiff knew that the nurse who performed the procedure was Suwan Cheong and that she was negligent in performing the procedure and improperly trained. Unlike the other Doe Defendants, reference to the Complaint shows that the doe-procedure cannot be used against Ms. Cheong. Despite these judicial admissions in the Complaint, Plaintiff chose not to name Ms. Cheong as a defendant <u>until</u> the Doe Amendment on 7/24/23, <u>almost two years</u> after filing the Complaint. (ROA 136). Defendant has met her burden to show that Plaintiff was not actually ignorant of her identity and the facts constituting her negligence claim at the time she filed in the Complaint. Although CCP § 474 is to be “liberally construed,” its requirements, as so construed, are mandatory. (<i>Fireman’s Fund Ins. Co. v. Sparks Const., Inc.</i> (2004) 114 Cal.App.4th 1135, 1143-1144.) In opposition, Plaintiff raises no triable issue of material fact. Instead, she presents extraneous facts to show that Ms. Cheong faced disciplinary actions and purportedly perjured herself during a deposition on 5/22/23 in this case. These facts do not create a triable issue with regard to Plaintiff’s admitted knowledge of Defendant’s identity and facts creating her liability, including negligently performing the procedure and handling the laser without proper training. Thus, the Motion is granted. Moving Defendant shall serve notice.
105	2023-01350541	Demurrer to Complaint The Court sustains Defendant Santa Ana Police Department’s demurrer to the Complaint in